

1.

CASE #	CASE NAME	HEARING NAME
CVME2403100	CARDENAS VS FCA US, LLC.	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Motion for Summary Judgment and Trial Setting Conference Continued until 12-16-26 8:30 am M301. Defendant to make its PMQ available for deposition within a reasonable amount of time. This Song-Beverly action arises from Plaintiff Amparo Guadalupe Cardenas' ("Plaintiff") purchase of a new 2016 Ram 1500 ("Vehicle"), which was sold with warranties issued by Defendant FCA US, LLC ("FCA" or "Defendant").

On December 6, 2016, Plaintiff purchased the Vehicle from Crown Dodge Chrysler Jeep Ram dealership ("Crown Dodge"). In connection with purchase of the Vehicle, Defendant issued a bumper-to-bumper warranty for the earlier of 36 months or 36,000 miles ("Limited Warranty") and a powertrain warranty for the earlier of 60 months or 100,000 miles ("Powertrain Warranty"). Thereafter, Plaintiff presented the Vehicle to DCH Chrysler Dodge Jeep Ram ("Dealer") for repairs and maintenance at least 16 separate times between April 24, 2017, and December 19, 2024.

On September 23, 2024, Plaintiff filed the Complaint ("FAC") against Defendant, asserting causes of action for: (1) violation of Civil Code § 1793.2(d) [failure to replace / refund]; (2) violation of Civil Code § 1793.2(b) [failure to commence / complete repairs]; (3) violation of Civil Code § 1793.2(a)(3) [failure to provide service literature / parts]; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

Defendant moves for summary judgment of the Complaint, or in the alternative, summary adjudication of each cause of action, for failure to state sufficient facts to constitute a cause of action. Specifically, Defendant argues that Plaintiff did not present the Vehicle for any repairs during the implied warranty one-year period, more than one repair during the three-year Limited Warranty period, or any repairs that fell within the limited scope of the Powertrain Warranty during the five-year Powertrain Warranty period. Defendant further contends that there is no evidence that it failed to repair the Vehicle within 30 days or failed to provide parts or literature. Lastly, Defendant argues that Plaintiff fails to produce any evidence that Defendant knew of and concealed any widespread EGR defect prior to the sale of the Vehicle.

In opposition, Plaintiff argues that Defendant's motion for summary adjudication is procedurally defective because its separate statement does not identify the grounds for relief for each separate cause of action or otherwise comply with California Rule of Court, Rule 3.1350. Plaintiff then contends that triable issues of material fact exist as to the breach of express warranty claim because the Vehicle also had an emissions warranty and extension that specifically covered the Vehicle's EGR system for the earlier of 7 years or 70,000 miles ("Emissions Warranty"), which applies to several of the repairs at issue. Plaintiff further argues that the evidence shows the Vehicle's EGR repairs were not commenced within 30 days, replacement parts and recall repairs were not available for months, and the Vehicle's EGR defects were latent defects that breached the implied warranty even though they did not appear within the one-year

period. Lastly, Plaintiff argues that a triable issue of material fact exists as to whether Dealer was Defendant's agent, and as such, had a duty to disclose the Vehicle's dangerous defect prior to the sale.

In reply, Defendant argues that its separate statement is applicable to all causes of action and is therefore not deficient. Defendant further contends that Plaintiff only presented the Vehicle for one EGR-related repair during the 70,000-mile period of the Emissions Warranty, which does not qualify as a breach of warranty under *Silvio*.

"If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (C.C.P. § 437c(h).)

The purpose of the declarations required by § 437c(h) is to inform the Court of outstanding discovery necessary to resist the summary judgment motion: "To be entitled to a continuance, the party opposing the motion for summary judgment must show that its proposed discovery would have led to facts essential to justify opposition." (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.) Accordingly, the opposing party's declaration in support of a motion to continue the hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (*Johnson v. Alameda County Medical Center* (2012) 205 Cal.App.4th 521, 532.)

However, the Fourth District favors continuing summary judgment motions to resolve matters on their merits, even where the need for a continuance is due to the party's own lack of diligence and the request does not fully comply with the standards set forth in § 437c(h). (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."]; *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309 [finding that the trial court had erred in denying a request to continue a summary judgment motion even where the request was made at the hearing and the party had not met the standard for a continuance under C.C.P. § 437c(h)].)

In her Opposition, Plaintiff requests a continuance under C.C.P. § 437c(h) to conduct further discovery, specifically a deposition of Defendant's person most qualified ("PMQ"). (Opp., p. 20; Pardo Decl. ¶¶11-12.) Plaintiff's counsel attests that Plaintiff has previously noticed the PMQ deposition, but Defendant objected and the PMQ has yet to be deposed. (Pardo Decl., ¶ 11.) Given that Plaintiff's claims, especially the fifth cause of action for fraudulent inducement – concealment, are dependent upon information that is solely within Defendant's knowledge and possession, the deposition of Defendant's

PMQ is necessary to allow Plaintiff to sufficiently oppose Defendant's motion for summary judgment or adjudication.

Accordingly, the Court continues this motion pursuant to CCP § 437c(h) to permit Plaintiff to conduct outstanding discovery, including the deposition of Defendant's PMQ. The Defendant's PMQ should be made available within a reasonable amount of time as the Court has the discretion to deny the motion under CCP 437c(i).